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|                  |                       | <p>address was confirmed as the client's current address within 30 days before filing or that the address is the client's last known address and that, after reasonable efforts within that period, counsel was unable to locate a more current address.</p> <p>The declaration also fails to satisfy Rules of Court, Rule 3.1362, subd. (d)(2), which requires that when a motion is served on the client electronically, the declaration must state that the electronic service address is the client's current electronic service address.</p> <p>Rules of Court, Rule 3.1362 further provides that:</p> <p style="padding-left: 40px;">As used in this rule, "current" means that the address was confirmed within 30 days before the filing of the motion to be relieved. Merely demonstrating that the notice was sent to the client's last known address and was not returned or no electronic delivery failure message was received is not, by itself, sufficient to demonstrate that the address is current. If the service is by mail, Code of Civil Procedure section 1011(b) applies.</p> <p>No later than nine (9) court days before the continued hearing, Moving Counsel shall file and serve: (1) an amended or supplemental declaration that complies with Rules of Court, Rule 3.1362; and (2) an updated proposed order on Judicial Council form MC-053 that updates all current upcoming hearing information in Section 7.</p> <p>Client Doan may file a response or opposition no later than five (5) court days before the continued hearing.</p> <p>Moving Counsel shall provide notice of this ruling and continued hearing date on the client.</p> <p><u>Case Management Conference</u></p> <p>The Case Management Conference is continued to June 11, 2026, at 10 a.m. in this department.</p> <p>Plaintiff to give notice.</p> |
| <b>1:30 p.m.</b> |                       |                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                           |
| 1                | Esparza v. Almendarez | <p>Defendant Nathan Alexander Almendarez's motion to tax costs by Plaintiff Jose Jesus Garcia Esparza is <b>GRANTED in part and DENIED in part</b> as set forth below.</p> <p><u>Legal Standard</u></p> <p>In general, the prevailing party is entitled as a matter of right to recover costs for suit in any action or proceeding. (Cal. Civ. Proc. Code §1032(b); <i>Santisas v. Goodin</i> (1998) 17 Cal.4th 599, 606; <i>Scott Co. Of Calif. v. Blount, Inc.</i> (1999) 20 Cal.4th 1103, 1108.) Allowable costs under Code of Civil Procedure section 1033.5 must be reasonably necessary to the conduct of the litigation, rather than merely convenient or beneficial to its preparation, and must be reasonable in amount. An item not specifically allowable under section 1033.5(a) nor prohibited under subdivision (b)</p>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                     |